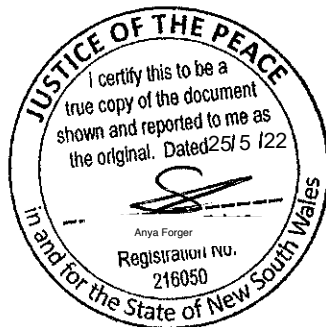


THE REX TRUST



TRUST DEED



*I certify this
trust deed & all pages.*

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Table of Contents

1.	Definitions	1
2.	Interpretation	4
3.	Creation of the Trust	5
4.	Appointor	5
4.1	Appointment and Removal	5
4.2	Vacation of Office	6
4.3	Bankruptcy	6
4.4	Failure to appoint successor	6
4.5	Majority Decision	6
5.	Trustee	6
5.1	Appointment and Removal	6
5.2	Vacation of Office	7
5.3	Failure to appoint successor	7
5.4	Majority Decision	7
5.5	Registration not required	7
6.	Power of Attorney	7
7.	Exercise of Powers	8
8.	Discretion	8
8.1	Discretion	8
8.2	Decision making	8
8.3	Not Answerable	8
9.	Trust Income	8
10.	Default Beneficiaries	8
11.	General Rules for Distribution of Income	9
11.1	Accumulation of Trust Income	9
11.2	Method of Payment to Beneficiary	9
11.3	Trustee's Determination	9
11.4	Distributed Income which has been set aside	9
11.5	Income Streaming	9
12.	Capital Distribution	10
12.1	Interim distribution	10
12.2	Final Distribution	10
12.3	No Beneficiaries	10
13.	Appropriate Trust Fund	10
14.	Beneficiary Under Legal Disability	10
14.1	Dealing with Beneficiary's entitlement	10
14.2	Application of Beneficiary's entitlement	10
15.	Revocation of Beneficiary's Entitlements	11
16.	Successor Trustee not a Beneficiary	11
17.	Partition of Trust Fund	11

17.1	Partition of Trust Fund	11
17.2	Terms of Sub-Trust	11
18.	Administration of Trust Fund	12
18.1	Minutes	12
18.2	Books and Records	12
18.3	Corporate Trustee	12
18.4	Other Trust Funds	12
18.5	Valuations	12
19.	Accounting Policy	12
19.1	Accounting	12
19.2	Method of accounting	12
19.3	Variation of method of accounting	12
19.4	Accounting standards	12
19.5	Treatment of income and capital	13
19.6	Preparation of accounts	13
20.	Indemnity	13
20.1	Trustee's Responsibility	13
20.2	Trustee's Right of Indemnity	13
21.	Remuneration	13
21.1	Outside interests	14
21.2	Remuneration	14
21.3	Solicitors, accountants and professionals	14
22.	Exclusion of Powers in Trustee Act	14
23.	General Powers	14
23.1	All powers at law	14
23.2	Trustee may act as if beneficial owner	15
23.3	Acts binding on beneficiaries	15
23.4	Partnership	15
24.	Investment Powers of Trustee	15
24.1	General investment powers	15
24.2	Power to Vary Investment	16
24.3	Set Aside Capital or Income	16
25.	Banking and Borrowing Powers of Trustee	16
25.1	Bank Accounts	16
25.2	Negotiable Instruments	17
25.3	Borrowings	17
25.4	Security	17
25.5	Validity of Security	17
25.6	Grant of Guarantee	17
25.7	Loan Trust Fund	18
26.	Specific Powers of Trustee	18
26.1	Conduct Business	18
26.2	Employ	18
26.3	Incorporate Company	18
26.4	Investment in Private Companies	18
26.5	Exercise of Voting Rights	19
26.6	Determination of Questions	19
26.7	Legal Proceedings	19
26.8	Engagement of Professionals	19
26.9	Residential Property	19

27.	Trustee Act	20
28.	Conflict of Interest	20
29.	Third Party Dealings	20
29.1	Third Party Dealings	20
29.2	Fraud	21
29.3	Discharge of liability	21
30.	Variation of Trust Deed	21
30.1	Power to vary	21
30.2	Law against perpetuities	21
30.3	Restrictions on power	21
31.	Notice	21
31.1	Deemed to have been given	21
31.2	When received	22
31.3	Two or more persons	22
32.	General	22
32.1	Counterparts	22
32.2	Entire Agreement	22
32.3	Further assurance	22
32.4	Governing law	22
32.5	Jurisdiction	22
32.6	No merger	22
32.7	Preservation of rights	22
32.8	Relationship	23
32.9	Severance	23
32.10	Time is of the essence	23
32.11	Waiver	23
33.	Costs	23
33.1	Legal costs	23
33.2	Stamp duty	23
	Schedule	24

This deed is made on the date specified in Item 1 of The Schedule, as between the Settlor and the Trustee.

Background

- A. The Settlor wishes to provide for the Beneficiaries in the manner set out in this Deed.
- B. To give effect to this wish the Settlor has paid or will pay the Settled Sum to the Trustee on or before the Commencement Date.
- C. The Trustee has consented to become trustee of the trusts established by this Deed and with and subject to the powers and provisions of this Deed.

The parties agree

1. Definitions

In this Deed unless the contrary intention appears:

- 1.1 **'Absentee Person'** has the same meaning given to that term by the Land Tax Act 2005 (Vic).
- 1.2 **'Accounting Period'** means:
 - 1.2.1 the period which commences on the Commencement Date and ends on the following 30 June;
 - 1.2.2 each whole year ending on 30 June during the period between the Commencement Date and the Vesting Date; and
 - 1.2.3 the period which commences on 1 July immediately prior to the Vesting Date and ends on the Vesting Date;
- 1.3 **'Applicable Law'** means the applicable law as described in **Item 11** of the **Schedule**.
- 1.4 **'Appointor'** means the person (as named in Item 9 of the Schedule or as determined under this deed) having the power under this deed to appoint or remove a trustee and the other powers set out in this deed (or if there is more than one Appointor at any time, acting jointly or the survivor or survivors of them);
- 1.5 **'Beneficiaries':**
 - 1.5.1 means:
 - (a) each Designated Beneficiary;
 - (b) each grandparent and each descendant of each grandparent of each Designated Beneficiary;
 - (c) each descendant of each grandparent of each Spouse of each Designated Beneficiary;
 - (d) each Spouse of each person described in any of clauses 1.5.1(a) to 1.5.1(c) (inclusive);
 - (e) each Child of each person described in clause 1.5.1(d);
 - (f) each trust in which any of the persons described in any of clauses 1.5.1(a) to 1.5.1(e) is a present, contingent or prospective beneficiary;

- (g) each corporation wherever incorporated or not in which any of the shares or capital is beneficially owned by any of the persons described in any of clauses 1.5.1(a) to 1.5.1(f);
 - (h) each trust in which any of the trusts described in clause 1.5.1(f) or the corporations described in clause 1.5.1(g) is a present, contingent or prospective beneficiary;
 - (i) each corporation, any of the shares or capital of which is beneficially owned by any of the corporations described in clause 1.5.1(g) or the trusts described in clause 1.5.1(h);
 - (j) each corporation, any of the shares or capital of which is owned by the Trustee;
 - (k) a Charity or Charities the Trustee nominates from time to time;
 - (l) any person, corporation, association or body to which a deductible gift may be made under Division 30 of the Tax Act; and
 - (m) Any other person described in Item 7 of The Schedule.
- 1.5.2 may include any person or corporation or trust notwithstanding that the person was not born or the corporation or trust was not in existence at the Commencement Date;
- 1.5.3 shall exclude:
- (a) the Settlor and any child of the Settlor for so long as that child is under the age of 18 years;
 - (b) any person which is or becomes an insolvent under administration as defined by the *Corporations Act* 2001 (Cth) for so long as that person remains an insolvent under administration
 - (c) such other persons corporations and trusts (if any) as may be described or defined in **Item 8** of the **Schedule** as a Member of the Excluded Class
- 1.6 **‘Capital Default Beneficiary’** means the children of the Designated Beneficiary and if there is more than one in equal shares as tenants in common but if a child of the Designated Beneficiary dies leaving a child or children then that child or children shall take the share that his or her parent would have taken had he or she remained alive and if there is more than one such child in equal shares as tenants in common;
- 1.7 **‘Capital Gains’** means that part of the capital receipts of the Trust Fund which are liable to be treated as assessable income for the purposes of the Tax Act;
- 1.8 **‘Charity’** means a corporation, association or body whether incorporated or unincorporated which may legally be the subject of a charitable trust under the proper law of this Deed.
- 1.9 **‘Child’** includes children who have been legally adopted, ex-nuptial children and foster children;
- 1.10 **‘Commencement Date’** means the date upon which this Deed is signed by the Settlor;
- 1.11 **‘Deed’** means this deed;
- 1.12 **‘Designated Beneficiary’** means the person or persons described in **Item 6** of the **Schedule**.
- 1.13 **‘Distributed Income’** means any part of the Trust Fund which the Trustee determines to Pay under clause 9;

- 1.14 **'Domestic Partner'** includes any person who the Trustee determines from time to time:
- 1.14.1 is or has been a de facto wife of the person in question;
 - 1.14.2 is or has been a de facto husband of the person in question;
 - 1.14.3 lives with or has lived with the person in question on a bona fide domestic basis as a partner of the person in question (regardless of whether the person is of the same or different gender to the person in question); and
 - 1.14.4 has or has had a relationship with the person in question which is of a personal and intimate nature (regardless of whether the person is of the same or different gender to the person in question);
- 1.15 **'Encumbrance'** means any interest or power reserved in or over any interest in an asset (including any retention of title or security for the performance of any obligation) having a material adverse effect on the interest encumbered;
- 1.16 **'Externally Administered Body Corporate'** has the same meaning given to that term by the *Corporations Act 2001* (Cth);
- 1.17 **'Foreign Person'** has the same meaning given to that term by the Duties Act 1997 (NSW), Land Tax Act 1956 (NSW) and the Duties Act 2001 (Qld) and includes an Absentee Person, a Foreign Purchaser and a Foreign Trustee.
- 1.18 **'Foreign Purchaser'** has the same meaning given to that term by the Land Tax Act 2005 (Vic).
- 1.19 **'Foreign Trustee'** means a person who is a Foreign Person because of the person's capacity as the trustee of a trust.
- 1.20 **'Governing State'** means the Governing State named in **Item 10** of the **Schedule**.
- 1.21 **'Income Default Beneficiary'** means the Designated Beneficiary but if the Designated Beneficiary is not alive at the time the Capital Default Beneficiary;
- 1.22 **'Initial Trustee'** means the Trustee named in this Deed;
- 1.23 **'Nominator'** means the President for the time being of the Law Society of the state as described in **Item 10** of the **Schedule**;
- 1.24 **'Pay'** means pay or apply or set aside;
- 1.25 **'Settled Sum'** means the amount specified in **Item 4** of the **Schedule**;
- 1.26 **'Settlor'** means the Settlor named in **Item 3** of the **Schedule**;
- 1.27 **'Schedule'** means the Schedule to this deed;
- 1.28 **'Spouse'** of a person includes:
- 1.28.1 the wife or husband of that person for the time being;
 - 1.28.2 a former wife or husband of that person;
 - 1.28.3 any person who the Trustee determines from time to time is or has been a Domestic Partner of that person;
 - 1.28.4 the widow or widower of that person for the time being, whether remarried or not;

- 1.28.5 in the case of a deceased person, any person who the Trustee determines was a Domestic Partner of that deceased person during the deceased person's lifetime;
- 1.29 **'Sub-trust'** means a sub-trust created under clause 17;
- 1.30 **'Successor Trustee'** means any Trustee after the Initial Trustee is replaced, substituted for or an additional Trustee is or Trustees are appointed;
- 1.31 **'Taxable Income'** means taxable income for the purposes of the Tax Act, excluding any amount which is included in taxable income only by reason of Division 207;
- 1.32 **'Tax Act'** means the *Income Tax Assessment Acts* of 1936 and 1997 of the Commonwealth of Australia as applicable;
- 1.33 **'Trust'** means the trust created by this Deed;
- 1.34 **'Trust Fund'** means:
- 1.34.1 the Settled Sum;
- 1.34.2 any money and other property having the nature of either capital or income acquired or accepted by the Trustee as an addition to the Settled Sum; and
- 1.34.3 the investments and property for the time being representing those sums or any part of them;
- 1.35 **'Trust Income'** means, in respect of any Accounting Period, an amount equal to the Taxable Income of the Trust Fund for that Accounting Period. As an alternative, the Trustee may determine the 'Trust Income' with respect to any Accounting period to be either:
- 1.35.1 the sum of the net income of the Trust Fund determined for that Accounting Period according to the accounting policy adopted under clause 19; or
- 1.35.2 any other basis as the Trustee determines.
- 1.36 **'Trust Officer'** means any Trustee or Appointor as the context requires;
- 1.37 **'Trustee'** means any trustee or trustees for the time being of the Trust;
- 1.38 **'Undistributed Income'** means the Trust Income other than the Distributed Income and the Trust Income the Trustee has determined to accumulate under clause 9.2; and
- 1.39 **'Vesting Date'** means the earliest of:
- 1.39.1 if the Governing State is South Australia, the day which the Trustee determines by deed to be the Vesting Date;
- 1.39.2 if the Governing State is not South Australia, the earliest of:
- (a) the day immediately prior to the eightieth anniversary of the Commencement Date;
- (b) the day which the Trustee determines by deed to be the Vesting Date.

2. Interpretation

In this Deed unless the contrary intention appears:

- 2.1 the **singular** includes the plural and vice versa;
- 2.2 a **gender** includes all other genders;
- 2.3 where a **word** or **phrase** is defined, its other grammatical forms have a corresponding meaning;
- 2.4 a reference to a **person** includes any corporation, partnership, joint venture, trust, association, government, or public authority and vice versa;
- 2.5 a reference to a **clause** or **annexure** is to a clause of or annexure to this Deed;
- 2.6 a reference to a **request** or **notice** means a request or notice in writing;
- 2.7 a reference to any **party** to this or any other document includes the party's successors and permitted assigns;
- 2.8 a reference to a **document** is to that document as amended, novated, supplemented, varied or replaced from time to time and includes any annexures, schedules and appendices to that document, except to the extent prohibited by that document;
- 2.9 a reference to any **legislation** or legislative **provision** includes any statutory modification, substitution or re-enactment and any subordinate legislation issued under that legislation or provision;
- 2.10 a reference to **conduct** includes any act, omission, representation, statement or undertaking whether or not in writing;
- 2.11 mentioning anything after **include**, **includes** or **including** does not limit what else might be included;
- 2.12 a reference to a **person** that comprises two or more persons means those persons jointly and severally;
- 2.13 the **headings** are for convenience only and do not affect the interpretation of this Deed;
- 2.14 a reference to a **month** means a calendar month;
- 2.15 a reference to **dollars** means Australian dollars;
- 2.16 a reference to **time** means the time in the capital city of the **Governing State**; and
- 2.17 the **Background** is correct and forms part of this Deed.

3. Creation of the Trust

- 3.1 The trusts created by this Deed will be known as the name as described in **Item 2** of the **Schedule**.
- 3.2 With effect on and from the date of this Deed, the Trustee agrees to hold the Trust Fund on trust subject to the terms of this Deed.

4. Appointor

4.1 Appointment and Removal

The Appointor may:

- 4.1.1 remove an Appointor;
- 4.1.2 resign as an Appointor;
- 4.1.3 appoint a new or replacement Appointor subject to such terms, conditions and restrictions as the Appointor may in its absolute discretion determine; or
- 4.1.4 appoint an additional Appointor subject to such terms, conditions and restrictions as the Appointor may in its absolute discretion determine.

4.2 Vacation of Office

An Appointor will remain in office until that Appointor:

- 4.2.1 is removed or replaced by the Appointor;
- 4.2.2 resigns by notice in writing;
- 4.2.3 dies or becomes insane (in the case of a natural person); or
- 4.2.3 has a liquidator, receiver, administrator or official manager appointed or becomes an Externally Administered Body Corporate (in the case of a corporation);
- 4.2.3 is wound up or otherwise ceases to exist (in the case of a corporation or trust).

4.3 Bankruptcy

The powers granted to an Appointor by this Deed are personal to the Appointor and cannot be exercised by a trustee in bankruptcy or by any other controller appointed under the *Bankruptcy Act 1996* (Cth) to administer the estate of an Appointor.

4.4 Failure to appoint successor

- 4.4.1 If an Appointor dies without appointing a successor, the Appointor's powers will vest in his or her legal personal representative.
- 4.4.2 If an Appointor who is not a natural person ceases to exist without appointing a successor, that Appointor will be deemed to have been removed from office without replacement.
- 4.4.3 In the event that at any time there is no person who is the Appointor and there is no reasonable prospect of there being a person would become the Appointor within a reasonable period of time, the Appointor shall be the person specified in writing by the Nominator. The Trustee must promptly request the Nominator to make the appointment and any reasonable expenses of the Nominator shall be borne by the Trust. In the event that the Trustee fails to make such request of the Nominator in accordance with the terms of this Deed then any Beneficiary may do so upon the same terms. The Nominator's decision shall be final and binding and shall be made at Nominator's sole discretion.

4.5 Majority Decision

Where there are two or more Appointors, their powers may be exercised by a majority of them.

5. Trustee

5.1 Appointment and Removal

The Appointor, and if there is no Appointor the Trustee may exercise the powers contained in clauses 5.1.2 and 5.1.3 and may:

- 5.1.1 remove a Trustee;
- 5.1.2 appoint a new or replacement Trustee; or
- 5.1.3 appoint one or more additional Trustees.

5.2 Vacation of Office

A Trustee will remain in office until the Trustee:

- 5.2.1 is removed or replaced in accordance with this Deed;
- 5.2.2 resigns by notice in writing;
- 5.2.3 dies or becomes insane (in the case of a natural person);
- 5.2.4 commits an act of bankruptcy (in the case of a natural person);
- 5.2.5 has a liquidator, receiver, administrator or official manager appointed or becomes an Externally Administered Body Corporate (in the case of a corporation);
- 5.2.6 is wound up or otherwise ceases to exist (in the case of a corporation or trust).

5.3 Failure to appoint successor

- 5.3.1 If a Trustee dies without a successor having been appointed, the Trustee's powers will vest in his or her legal personal representative.
- 5.3.2 If a Trustee who is not a natural person ceases to exist without a successor having been appointed, that Trustee will be deemed to have been removed from office without replacement.
- 5.3.3 If at any time there is no person who is authorised to act as Trustee, the Trustee shall be the person specified in writing by the Nominator. Any Beneficiary may request the Nominator to make the appointment and any reasonable expenses of the Nominator shall be borne by the Trust. The Nominator's decision shall be final and binding and shall be made at Nominator's sole discretion.

5.4 Majority Decision

Where there are two or more Trustees, their powers may be exercised by a majority of them.

5.5 Registration not required

Notwithstanding anything else to the contrary, any deed (or other document) evidencing the replacement, appointment, retirement or change of the Trustee of the Trust shall take effect according to its terms notwithstanding that such document has not been registered.

6. Power of Attorney

6.1 Appointment of Attorney by Trustee

The Trustee is hereby empowered from time to time to appoint one or more attorneys under power of attorney upon such terms as the Trustee thinks fit to perform any of the powers, authorities, duties or functions conferred on the Trustee by this Deed or by law. Any such power of attorney will remain valid and effectual for the period nominated by the Trustee or until revoked by the Trustee in its absolute discretion.

6.2 Appointment of Attorney by Appointor

Each Appointor is hereby empowered from time to time to appoint one or more attorneys under power of attorney upon such terms as that Appointor thinks fit to perform any of the powers, authorities, duties or functions conferred on that Appointor by this Deed or by law. Any such power of attorney will remain valid and effectual for the period nominated by that Appointor or until revoked by that Appointor in that Appointor's absolute discretion.

7. Exercise of Powers

An Appointor or Trustee (including an attorney appointed under clause 6) who is a:

- 7.1 corporation must (unless otherwise stated in this Deed) exercise the powers conferred by clauses 4 to 6 inclusive by deed;
- 7.2 natural person must (unless otherwise stated in this Deed) exercise the powers conferred by clauses 4 to 6 inclusive by deed or will.

8. Discretion

8.1 Discretion

Each Trustee and each Appointor (subject to any terms, conditions or restrictions imposed pursuant to clause 4.1.3 and 4.1.4):

- 8.1.1 has an absolute and uncontrolled discretion in the exercise of the authorities and powers vested in it by this Deed; and
- 8.1.2 may at any time exercise or refrain from exercising all or any of those authorities and powers.

8.2 Decision making

- 8.2.1 An Appointor or Trustee need not assign any reason for any decision made by it.
- 8.2.2 An Appointor or Trustee shall not be bound to disclose any document containing any of its deliberations as to the exercise of any power or discretion under this Deed.

8.3 Not Answerable

An Appointor or Trustee is not answerable for any act done in conformity with or in pursuance or purported pursuance of an effective or binding decision made by it under this Deed.

9. Trust Income

Subject to clause 11 the Trustee may in each Accounting Period determine to do any one or more of the following:

- 9.1 Pay the Trust Income to or for any one or more of the Beneficiaries; or
- 9.2 accumulate the Trust Income.

10. Default Beneficiaries

The Income Default Beneficiary will be absolutely entitled to the Undistributed Income of an Accounting Period on the last day of the Accounting Period if the Trustee has not determined to do one of the things described in clause 9 before the end of that day.

11. General Rules for Distribution of Income

11.1 Accumulation of Trust Income

11.1.1 The amount of any accumulation will be an accretion to the Trust Fund but the Trustee may at any time Pay the whole or any part of the accumulations as if they were Trust Income.

11.1.2 No Trust Income can be accumulated beyond the period permitted by law for accumulations. After that period the Trustee must Pay the whole of the accumulated Trust Income as Distributed Income.

11.2 Method of Payment to Beneficiary

Payment to a Beneficiary may be made by:

11.2.1 crediting the amount to the Beneficiary in the books of the Trust Fund; or

11.2.2 Paying it to the Beneficiary or for his or her benefit.

11.3 Trustee's Determination

11.3.1 A determination by the Trustee may be made by oral declaration or by written statement whether published or not.

11.3.2 A certificate by the Trustee as to any determination is prima facie evidence that it was made as and when stated in the certificate.

11.4 Distributed Income which has been set aside

Any Trust Income set aside:

11.4.1 will not be part of the Trust Fund; and

11.4.2 will be held by the Trustee as a separate trust fund on trust for the person entitled to the benefit of it.

11.5 Income Streaming

11.5.1 For the purpose of identifying those portions of Trust Income which the Trustee has Paid or accumulated under clause 9, the Trustee may as it thinks fit:

- (a) maintain two or more separate income accounts;
- (b) credit each income receipt to one or more of the income accounts;
- (c) credit each Capital Gain to one or more of the income accounts;
- (d) debit each item of expenditure of a revenue nature to one or more of the income accounts;
- (e) debit any amount of Trust Income Paid or accumulated under clause 9 to one or more of the income accounts.

11.5.2 The powers of the Trustee under this clause 11.5 include the power to:

- (a) credit any dividend income which is derived by the Trust Fund and which is franked within the meaning of Part 3-6 of the Tax Act or any Capital Gains to one or more of the income accounts; and
- (b) appropriate that income to any of the Beneficiaries to the exclusion of the other Beneficiaries.

12. Capital Distribution

12.1 Interim distribution

The Trustee may at any time prior to the Vesting Date determine to Pay any part of the capital of the Trust Fund to or for the benefit of a Beneficiary.

12.2 Final Distribution

The Trustee must on the Vesting Date Pay the Trust Fund to or for the benefit of one or more Beneficiaries then living or in existence and if the Trustee fails to pay the Trust Fund to or for the benefit of such a Beneficiary or Beneficiaries then the Capital Default Beneficiary shall be entitled to the Trust Fund on the Vesting Date.

12.3 No Beneficiaries

If at the Vesting Date there is no Beneficiary or Capital Default Beneficiary living or in existence, then the Trustee must hold the Trust Fund on trust for such Charity or Charities as the Trustee then determines and any resulting trust to the Settlor is negated.

13. Appropriate Trust Fund

The Trustee may appropriate the whole or any part of the Trust Fund in its actual state or condition in or towards satisfaction of any interest or entitlement of any person in the Trust Fund or any part of it.

14. Beneficiary Under Legal Disability

14.1 Dealing with Beneficiary's entitlement

While a Beneficiary is an infant or otherwise under any legal disability the Trustee may:

- 14.1.1 on behalf of that Beneficiary, invest any money or property to which that Beneficiary is entitled and the resulting income as if it were part of the Trust Fund; and
- 14.1.2 Pay the whole or any part of the capital or income of the Trust Fund in or towards the maintenance, education, benefit or advancement in life of that Beneficiary.

14.2 Application of Beneficiary's entitlement

- 14.2.1 The Trustee may either apply that part of the Trust Fund to which clause 14.1.1 applies for that purpose or Pay it to the parent or other person who then has the care or custody of the Beneficiary.
- 14.2.2 The Trustee is not required to see to the application of the relevant part of the Trust Fund or to have regard to the means of the parent or other person or to the amount of any other money available for the same purpose.

15. Revocation of Beneficiary's Entitlements

15.1 Any Beneficiary may by irrevocable deed executed prior to the Vesting Date, direct the Trustee not to Pay to that Beneficiary:

15.1.1 any Trust Income; and/or

15.1.2 any capital from the Trust Fund,

15.1.3 for any period of time specified in that deed.

15.2 Notwithstanding any discretion conferred on the Trustee, the Trustee must comply with a declaration made under clause 15.1.

15.3 Any provision in this clause 15 which, when acted upon, has the effect of:

15.3.1 resettling the Trust; or

15.3.2 creating a new 'trust estate',

15.3.3 shall, unless otherwise expressly resolved by the Trustee, be read down to the extent necessary to avoid that effect.

16. Successor Trustee not a Beneficiary

Where the Governing State is NSW and subject to clauses 20, 21.2 and 21.3 and notwithstanding clause 30, any person who is or at any time has been a Successor Trustee is absolutely prohibited from being a Beneficiary under this Deed.

17. Partition of Trust Fund

17.1 Partition of Trust Fund

17.1.1 The Appointor may appoint Trust Officers in respect of any one or more assets and/or liabilities of the Trust Fund.

17.1.2 The Sub-trust and its Trust Officers, shall hold the assets of the Sub-trust upon, and be bound by the terms of this Deed.

17.2 Terms of Sub-Trust

17.2.1 Any Trust Officer appointed in respect of a Sub-trust:

(a) shall, in respect of that Sub-trust, have all the rights and obligations of a Trust Officer set out in this Deed; and

(b) unless also holding a Trust Office in respect of this Trust or any other Sub-trust, shall have none of the powers of a Trust Officer in respect of this Trust or any other Sub-trust.

17.2.2 The power under this Deed to vary the terms of any Sub-trust may not, without the prior written consent of the Trustee of this Trust and the trustees of each Sub-trust, be exercised to:

(a) vary the class of Beneficiaries of the Sub-trust; or

(b) resettle the Sub-trust.

18. Administration of Trust Fund

18.1 Minutes

The Trustee must keep minutes of all resolutions and proceedings.

18.2 Books and Records

The Trustee must keep books of account and records of the Trust Fund.

18.3 Corporate Trustee

If any Trustee is a corporation, the powers, discretions and authorities vested in the Trustee by this Deed may (subject to its constituent documents) be exercised for and on behalf of that Trustee by its board of directors.

18.4 Other Trust Funds

The Trustee may use, deal with and administer any part of the Trust Fund together with any asset held by the Trustee in the Trustee's own right or as trustee of any other trust.

18.5 Valuations

The Trustee may at any time obtain a valuation of any property of the Trust Fund from a person the Trustee considers appropriately qualified or experienced and may rely on that valuation in exercising any of its powers under this Deed.

19. Accounting Policy

19.1 Accounting

The Trustee must pursuant to this **clause 19** record and account for all:

19.1.1 income from the investment of and other accretions to the Trust Fund; and

19.1.2 outgoings whether on capital or revenue account.

19.2 Method of accounting

The Trustee may:

19.2.1 decide whether the income, accretions, expenditure and outgoings of the Trust Fund are capital or income and whether they are to be accounted for on the basis of receipts or accruals; and

19.2.2 account for some part of the Trust Fund on one basis and the rest of the Trust Fund on another basis.

19.3 Variation of method of accounting

The Trustee may vary the basis of accounting for the whole or any part of the income, accretions, expenditure and outgoings of the Trust Fund from one Accounting Period to the next.

19.4 Accounting standards

If **clauses 19.2** and **19.3** do not apply, the Trustee must account according to generally accepted accounting standards.

19.5 Treatment of income and capital

19.5.1 Notwithstanding anything contained in clauses 19.2 to 19.4 inclusive, the Trustee may for any Accounting Period elect to account for the whole or some part of the Trust Fund on the basis which is used to calculate its Taxable Income for that Accounting Period, in which case:

- (a) the accruals, accretions, losses and outgoings which go to make up the Taxable Income of the Trust Fund will be treated on revenue account for all the purposes of this Deed; and
- (b) all other accruals, accretions, losses and outgoings will be treated on capital account.

19.5.2 The Trustee may determine whether any sum received or disbursed is on account of capital or revenue, or partly on account of capital and partly on account of revenue and in what proportions.

19.6 Preparation of accounts

The Trustee may from time to time and must at the end of each Accounting Period prepare accounts for the Trust Fund in accordance with this clause 19.

20. Indemnity

20.1 Trustee's Responsibility

Except in relation to a breach of trust knowingly or wilfully committed by the Trustee:

- 20.1.1 the Trustee is not personally responsible or liable in respect of the execution or purported or attempted execution of, or failure or neglect to exercise or carry out any of the Trustee's duties, authorities, powers or discretions;
- 20.1.2 the Trustee is entitled to be indemnified out of the Trust Fund against all liabilities incurred by the Trustee as trustee of the Trust; and
- 20.1.3 the Trustee is entitled to a lien on, and may use the Trust Fund for the indemnity and generally for the payment of all proper costs and expenses of performing the Trustee's duties under this Deed.

20.2 Trustee's Right of Indemnity

The Trustee's right of indemnity is limited to the right described in this **clause 20**. The Trustee has no right to be indemnified by any of the Beneficiaries against any liability incurred by the Trustee as trustee of the Trust.

21. Remuneration

21.1 Outside interests

It is lawful for any Trustee:

- 21.1.1 to be a director or other officer of any company in which any of the money forming part of the Trust Fund is for the time being invested; and
- 21.1.2 to receive and retain for its own use all remuneration and expenses from time to time fixed in conformity with the constitution of that company.

21.2 Remuneration

Any Trustee may charge and be paid out of the Trust Fund or its income such remuneration as the Trustee in its absolute discretion thinks fair and reasonable, having regard to the work done and responsibility assumed in connection with the Trust.

21.3 Solicitors, accountants and professionals

Any Trustee or a director or officer of a corporate Trustee being a solicitor, accountant or other professional person:

21.3.1 may be employed to transact any business or do any act required to be done in connection with the Trust; and

21.3.2 is entitled to be paid all proper costs, charges, fees and expenses for any professional business or act done by him or his firm in relation to the Trust as he would have been entitled to receive in respect of that business if he had not been a Trustee or a director or officer of a corporate Trustee.

22. Exclusion of Powers in Trustee Act

The following provisions (as amended or replaced from time to time) if they are part of the Applicable Law, are excluded and shall not apply to the Trust or the exercise of the Trustee's powers and discretions under this deed:

22.1 Sections 43 and 44 of the *Trustee Act* 1925 (NSW);

22.2 Sections 43 & 44 of the *Trustee Act* 1925 (ACT);

22.3 Sections 33 and 33A of the *Trustee Act* 1936 (SA);

22.4 Sections 58 to 60 of the *Trustees Act* 1962 (WA);

22.5 Sections 37 and 38 of the *Trustee Act* 1958 (Vic);

22.6 Sections 61 to 63 of the *Trusts Act* 1973 (Qld);

22.7 Section 29 of the *Trustee Act* 1898 (Tas);

22.8 Sections 24 and 24A of the *Trustee Act* 1907 (NT).

23. General Powers

23.1 All powers at law

Unless otherwise expressly provided in this Deed, the Trustee has in addition to all the specific powers provided in this Deed:

23.1.1 all the powers authorities and discretions of a natural person;

23.1.2 all the powers, authorities and discretions conferred by the common law, equity and by legislation on trustees; and

23.1.3 will not be restricted or obligated by provisions relating to trustees contained in any legislation of the Commonwealth of Australia or any of its States or Territories.

23.2 Trustee may act as if beneficial owner

The Trustee may generally with respect to the Trust Fund perform all acts of alienation and hypothecation and other acts of ownership to the same extent and with the same effect as if the Trustee were the beneficial owner of the Trust Fund.

23.3 Acts binding on beneficiaries

The decisions and actions of the Trustee (whether made or taken in writing or implied from the actions of the Trustee) are conclusive and binding on all the Beneficiaries and all others who in the future acquire any interest under this Deed.

23.4 Partnership

The Trustee may exercise all the powers and authorities vested in the Trustee by this Deed solely or jointly, or in partnership, or otherwise in conjunction with any other person (whether acting on their own behalf or as trustee of any other trust).

24. Investment Powers of Trustee

24.1 General investment powers

The Trustee may invest the Trust Fund or any part of it in any form of investment and on such terms as the Trustee considers desirable, including:

- 24.1.1 any one or more of the investments sanctioned by law in any State or Territory of the Commonwealth of Australia for the investment of trust funds;
- 24.1.2 payment of premiums on any policy of assurance on the life of any person, whether or not any such policy stands in the name of the Trustee;
- 24.1.3 the purchase of land of any tenure anywhere in the world, including the purchase of any land subject to any Encumbrance;
- 24.1.4 the acquisition by original subscription or by purchase or otherwise and whether at a premium or at par of:
 - (a) the shares or options of any class or type, whether fully paid or not; or
 - (b) debentures, notes, bonds or other holdings or securities in any company;
- 24.1.5 an investment in or option over the securities of any company notwithstanding any restriction on the right of transfer of such securities, the appointment of directors, or otherwise;
- 24.1.6 the purchase, lease or hire of any real or personal property;
- 24.1.7 the sale, lease or hire of any real or personal property on such terms as the Trustee thinks fit.
- 24.1.8 the purchase or acquisition of units or sub-units of any fixed or flexible unit trust;
- 24.1.9 place funds on deposit with any financial institution, company or trust including free of interest (and notwithstanding a beneficiary has an interest in any such institution, company or trust); and
- 24.1.10 any business or businesses carried on by the Trustee.

24.2 Power to Vary Investment

The Trustee may at any time vary or realise an investment of any part of the Trust Fund and reinvest money resulting from the realisation in any form of investment.

24.3 Set Aside Capital or Income

The Trustee may provide and set aside an amount out of the capital or income of the Trust Fund to discharge or reduce any Encumbrance, debt or liability affecting the Trust Fund or any part of it.

24.4 Blending Investments

To blend for the purposes of investment as it may from time to time decide any moneys which the trustee holds upon the Trust herein declared with other moneys (whether or not such moneys are subject to any other settlement or trust and whether or not the Trustee is trustee of such other settlement or trust) and to join with any other person or persons including a trustee or another trust in making common investment including carrying on any business partnership or joint enterprise.

24.5 Derivatives

24.5.1 To enter into, grant, acquire, participate in or deal with in any manner (including for the purpose of risk management, enhancing investment return or substitution for physical holdings) any financial arrangement including without limitation any interest rate cap/collar/floor agreement, interest rate swap contract, currency swap contract, forward exchange rate contract, forward interest rate contract, futures contract, derivatives agreement, or any other like contract and any hedging, swapping or like arrangement whether or not related to any other property forming part of the trust fund, and including any instrument under which a right or option in respect of a financial arrangement may be exercised.

24.5.2 To give and execute any mortgage, charge or other security over all or any part or parts of the assets of the Trust as may be required to secure the payment or the performance of any contract or obligation under or in connection with any transaction of the type referred to in sub-clause 24.5.1.

25. Banking and Borrowing Powers of Trustee

25.1 Bank Accounts

The Trustee may open accounts of every description with any bank or other financial institution and in doing so:

25.1.1 conduct and operate those accounts in accordance with the customs, usages and practices of the relevant financial institution, including the power to operate any account in overdraft;

25.1.2 agree to the institution debiting any account with interest, costs, charges, expenses, liabilities and government imposts incurred by the institution at any time on behalf of the Trustee;

25.1.3 borrow or raise money; and

25.1.4 secure the payment of any liability or the performance of any contract, guarantee, indemnity or other engagement.

25.2 **Negotiable Instruments**

The Trustee may draw, make, accept, endorse, discount, execute and issue promissory notes, bills of exchange, bills of lading and other negotiable or transferable instruments.

25.3 **Borrowings**

25.3.1 The Trustee may borrow or raise moneys for any purpose the Trustee thinks fit, notwithstanding that the Trust Fund may already be wholly invested or applied or that the money to be borrowed or raised may exceed the value of the Trust Fund.

25.3.2 No lender need enquire whether the borrowing is necessary or as to its purpose or as to the application of the money borrowed.

25.4 **Security**

The Trustee may grant an Encumbrance over the property of the Trust Fund to secure the payment of money to any person, on such terms as the Trustee thinks fit, and to join with any person in executing any mortgage or other document to secure the payment of money either jointly to the Trustee and that person or only to that person.

25.5 **Validity of Security**

25.5.1 No Encumbrance given or created by the Trustee to or in favour of any person over or in respect of the Trust Fund or any part of it will be invalid by reason of:

- (a) any error or omission (whether of law or fact) on the part of the Trustee or its advisers; or
- (b) any breach of duty or trust whatsoever;

unless it is proved to have been committed, made or omitted in personal conscious fraudulent bad faith by the Trustee.

25.5.2 All persons claiming any beneficial interest in the Trust Fund are deemed to have had notice of clause 25.5.1.

25.6 **Grant of Guarantee**

25.6.1 The Trustee may:

- (a) give any guarantee or indemnity (with or without security, solely or jointly with any other person, and with or without remuneration) for the payment of money or the performance of any contract, obligation or undertaking by any person;
- (b) grant any Encumbrance over the property (both present and future) of the Trust Fund to secure that guarantee and or indemnity; and
- (c) if a company, give and execute a registrable charge or other security under the *Corporations Act 2001* (Cth) over all the property (both present and future) of the company and the Trust Fund.

25.6.2 This power may be exercised even if there may be no contractual, legal, or fiduciary relationship between the Trustee and the person to whom or on behalf of whom the guarantee and or indemnity will be given.

25.7 Loan Trust Fund

The Trustee may lend any part of the Trust Fund to any person (including any Beneficiary) with or without interest with or without security and upon such terms and conditions as the Trustee determines.

26. Specific Powers of Trustee

26.1 Conduct Business

The Trustee may conduct and terminate any trade, business or profit making undertaking or scheme anywhere in the world, either alone, in partnership or by joint venture, and under any name as the Trustee thinks fit.

26.2 Employ

The Trustee may employ and pay remuneration to any person (including a Beneficiary or Trustee) in connection with:

- 26.2.1 the conduct of any trade, business or profit making undertaking or scheme carried on by the Trustee; or
- 26.2.2 anything required to be done pursuant to this Deed.

26.3 Incorporate Company

26.3.1 Incorporation

The Trustee may (at the expense of the Trust Fund) incorporate any company (with limited or unlimited liability) in any place under the law of that place including without limitation for the purpose of:

- (a) acquiring the Trust Fund or any part of it; and
- (b) acting as Trustee of the Trust Fund or any part of it.

26.3.2 Issue of Securities

In the case of a sale of the Trust Fund or any part of it to a company incorporated pursuant to this clause 26 the consideration may consist wholly or partly of shares, stock, debentures or other securities of the company and may be allotted to or otherwise vested in the Trustee.

26.4 Investment in Private Companies

26.4.1 Trustee responsibility

If the Trustee invests the Trust Fund or any part of it in the stocks or shares of any proprietary or private company, then the Trustee will be responsible only for so much of the stock or shares and the dividends and income from them as is actually transferred and paid to the Trustee.

26.4.2 Attending meetings

The Trustee is excused from attending any meetings of the company and is authorised from time to time to appoint and give such proxy as it thinks fit to represent the Trustee at any meeting of the company.

26.4.3 Trustee not bound to investigate affairs

The Trustee may if it thinks fit, but nothing in this clause 26.4 will oblige the Trustee to:

- (a) investigate the accounts or management or control of the company;
- (b) enquire into or in any manner to question or bring an action, suit or proceedings, or in any other manner whatsoever to seek to interfere with the management, government or control of the company by its directors; or
- (c) take any step or bring any action, suit or proceedings, or in any other manner whatsoever to seek to vary the articles of association or constitution of the company or wind up the company.

26.5 Exercise of Voting Rights

The Trustee may exercise or concur in exercising the voting and other rights attaching to any securities for the time being forming part of the Trust Fund so as to become a director or other officer or employee of any company, and to vote for and to be paid and to retain for the Trustee's own use and benefit reasonable remuneration for the Trustee's services to that company.

26.6 Determination of Questions

The Trustee may determine all questions and matters of doubt which may arise in the course of the management, administration, realisation, liquidation, partition or winding up of the Trust Fund.

26.7 Legal Proceedings

The Trustee may institute and defend proceedings at law and pursue them to such final determination or compromise as the Trustee thinks fit.

26.8 Engagement of Professionals

26.8.1 The Trustee may:

- (a) employ and pay for such professional or other assistance (including assistance from a partner or a director of a Trustee) as the Trustee considers necessary in the discharge of the duties of the Trustee; and
- (b) act on the opinion, advice or information obtained from a financial adviser, accountant, barrister, solicitor, valuer, surveyor, broker, auctioneer or any other advisor or expert.

26.8.2 The Trustee is not responsible for any loss, depreciation or damage caused by acting or not acting in accordance with that opinion, advice or information.

26.9 Residential Property

The Trustee may purchase a house property (whether by purchase of an existing house or by purchase of land and the construction of a house on it) and permit any one or more of the Beneficiaries to live in and have the use and occupation of the house property whether rent free or otherwise and on terms and for any period (expiring on or before the Vesting Date) that the Trustee thinks fit. During that period the Trustee may:

- 26.9.1 insure the house against loss or damage;
- 26.9.2 keep the house and all buildings, erections and improvements on the land in good repair and condition; and
- 26.9.3 pay all rates, taxes assessed and other outgoings and expenses on the land or on the owner or occupier of the land or payable in respect of the land.

27. Trustee Act

The Trustee is relieved of the duties imposed on trustees by the following by the following provisions (as amended or replaced from time to time) if they are part of the Applicable Law:

- 27.1 Division 2, Part 2 of the *Trustee Act* 1925 (NSW);
- 27.2 Division 2.2 in part 2 of the *Trustee Act* 1925 (ACT);
- 27.3 Part 1 and Divisions 3 and 4 of Part 2 of the *Trustee Act* 1936 (SA);
- 27.4 Part III to Part VI of the *Trustees Act* 1962 (WA);
- 27.5 Parts I & II of the *Trustee Act* 1958 (Vic);
- 27.6 Parts 3 to 6 of the *Trusts Act* 1973 (Qld);
- 27.7 Parts II and III of the *Trustee Act* 1898 (Tas);
- 27.8 Parts I & II of the *Trustee Act* 1907 (NT).

28. Conflict of Interest

The Trustee shall have the power generally to exercise or concur in exercising all the foregoing powers and discretions contained in this Deed or otherwise by law conferred notwithstanding that any person being a Trustee or any person being a director or shareholder of a Trustee hereof (being a company) has or may have a direct or personal interest (whether as trustee of any other settlement or in his person capacity or a shareholder or director or member or partner of any company or partnership or as a unitholder in any Unit Trust or beneficiary of any Discretionary Trust or otherwise howsoever) in the mode or result of exercising such power or discretion or may benefit either directly or indirectly as a result of the exercise of any such power or discretion and notwithstanding that the Trustee for the time being is the sole Trustee.

29. Third Party Dealings

29.1 Third Party Dealings

No person dealing with the Trustee need:

- 29.1.1 enquire as to the adequacy of the powers of the Trustee in relation to any dealing or as to the proper exercise by the Trustee of any of the powers, authorities and discretions vested in the Trustee by this Deed;
- 29.1.1 enquire as to the propriety or regularity of any transaction affecting the Trust Fund or any part of it; or
- 29.1.3 see to the application of any money paid to the Trustee or to any person at the Trustee's direction.

29.2 Fraud

In the absence of fraud on the part of a person dealing with the Trustee, the dealing is deemed to be within the powers of the Trustee and to be valid and effective.

29.3 Discharge of liability

The receipt of the Trustee or the receipt of any person paid at the direction of the Trustee is a valid discharge from all liability in respect of the payment.

30. Variation of Trust Deed

30.1 Power to vary

Subject to **clauses 16, 30.2 and 30.3** the Trustee may at any time by deed:

30.1.1 vary any provision of this Deed; and/or

30.1.2 declare any new or other trusts, powers or discretions concerning the Trust Fund or any part of it (including expanding or contracting the class of persons who are Beneficiaries, or removing one class of such persons and replacing it with another).

30.2 Law against perpetuities

The Trustee may not exercise the powers in clause 30.1 to infringe the law against perpetuities (if applicable) nor the law relating to accumulations (if applicable).

30.3 Restrictions on power

The new or other trusts, powers, discretions, alterations or variations may not:

30.3.1 be in favour of, or for the benefit of, the Settlor or result in any benefit to the Settlor (or any child of the Settlor under the age of 18 years);

30.3.3 affect the beneficial entitlement to any amount already set aside for or vested in any Beneficiary unless that Beneficiary consents;

30.3.3 affect the powers of any Appointor then in office unless that person consents.

30.4 Foreign Persons and Foreign Trustees

Where the Excluded Class contains any Foreign Person or any Foreign Trust this deed may not be amended so as to allow and Foreign Person or any Foreign Trust to be a beneficiary.

31. Notice

31.1 Deemed to have been given

A notice under this Deed is deemed to have been given if it is in writing and executed by the sender or its agent and is:

31.1.1 delivered to the address on page one of this Deed (or any other address notified to all parties in writing);

31.1.2 sent by pre-paid post to the address on page 1 of this Deed (or any other address notified to all parties in writing);

31.1.3 sent by facsimile transmission to the recipient's last known facsimile number; or

31.1.4 sent or delivered to the recipient in accordance with the *Corporations Act 2001 (Cth)* or any other legislation.

31.2 When received

A notice given in accordance with this clause 31 is deemed to have been received:

31.2.1 if delivered or transmitted by facsimile;

(a) on the day of transmission or delivery if the transmission or delivery occurred before 5.00 pm on a Business Day; and

(b) otherwise, on the next Business Day; and

31.2.2 if sent by pre-paid post, on the third Business Day after posting.

31.3 Two or more persons

Where two or more persons comprise a party, notice to one is effective notice to all.

32. General

32.1 Counterparts

This Deed and any document required by this Deed may be executed in any number of counterparts each of which is taken to be an original. All of those counterparts taken together constitute one instrument. An executed counterpart may be delivered by facsimile.

32.2 Entire Agreement

This Deed records the entire agreement between the parties as to its subject matter. Any prior negotiations, agreements, arrangements, representations and understandings as to the subject matter of this Deed are superseded by this Deed.

32.3 Further assurance

Each party must promptly execute all documents and do all things that another party reasonably requests to effect, perfect or complete this Deed and all transactions incidental to it.

32.4 Governing law

This Deed is governed by the Applicable Law and the laws of the Commonwealth of Australia.

32.5 Jurisdiction

The parties submit to the jurisdiction of the Courts of the Governing State and the Commonwealth of Australia. Any proceeding brought in the Federal Court of Australia must be instituted in its District Registry in the Governing State.

32.6 No merger

The rights and obligations of the parties will not merge on completion of any transaction under this Deed or upon the execution of any other agreement or other document in connection with the subject matter of this Deed.

32.7 Preservation of rights

All rights under this Deed are in addition to and do not abrogate, limit or reduce any other rights that party may have.

32.8 Relationship

Unless otherwise specified nothing in this Deed creates a relationship of principal and agent, employer and employee, partnership or joint venture between the parties.

32.9 Severance

Any provision of this Deed that is invalid, unenforceable or illegal must be read down to the extent necessary to avoid that effect. If that is not possible, that provision must be excluded from this Deed but only to the extent necessary to avoid that effect. All other provisions of this Deed continue to be valid and enforceable.

32.10 Time is of the essence

Unless otherwise specified, time is of the essence in this Deed.

32.11 Waiver

A right or obligation under this Deed cannot be waived except by a document executed by the party waiving that right or obligation and specifying the waiver.

33. Costs

33.1 Legal costs

The Trustee must bear the costs in relation to the negotiation, preparation and execution of this Deed and any document required by this Deed.

33.2 Stamp duty

The Trustee must pay all stamp duty, registration fees and any other fees charged by any government authority or body in respect of this Deed and any document required by this Deed.

Schedule

Item 1 - Date of this Deed	7th Day of March 2018
Item 2 - Name of Trust	The Rex Trust
Item 3 - Settlor	Damion Desmond of 21 Needle Street Haymarket NSW 2000
Item 4 - Settled Sum	\$10.00
Item 5 - Trustee	The Rexlown Pty Ltd ACN 624 848 504 of Suite 452, Level 5, 311 Castlereagh Street Sydney NSW 2001
Item 6 - The Designated Beneficiary:	Lloyd Forger of 46 Mario Street Sydney NSW 2000
Item 7 - Additional Beneficiary Details (see clause 1.5.1(m))	
Item 8 - Details of Members of Excluded Class (see clause 1.5.3(c))	plus Any Foreign Person Or Any Foreign Trust
Item 9 - The Appointor	Lloyd Forger of 46 Mario Street Sydney NSW 2000 (until his/her/their death or mental incapacity) then followed by the Successor Appointor upon the death or mental incapacity of all of the Appointors named above until the death or mental incapacity of the Successor Appointor, or of there be no Successor Appointor, at which time the legal representative of the last remaining Appointor

Item 10 - Governing State

The State or Territory in which the Initial Trustee resides.

Where there are two or more Initial Trustees then the **Governing State** shall be the State or Territory in which the first named Initial Trustee above resides.

Item 11 - Applicable Law

The laws of the **Governing State**.

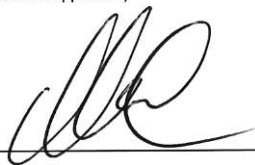
Item 12 - Successor Appointor

Yor Forger of
46 Mario Street
Sydney NSW 2000

EXECUTED AS A DEED on the date set out in the Schedule as the Date of this Deed.

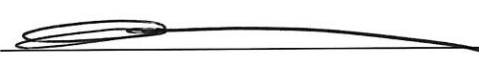
signed for and on behalf of
The Rexlown Pty Ltd
ACN 624 848 504
in accordance with section 127 of the
Corporations Act 2001

name of Director/Secretary
(cross out if inapplicable)



signature of Director/Secretary
(cross out if inapplicable)

name of director/sole director & sole
secretary (cross out if inapplicable)



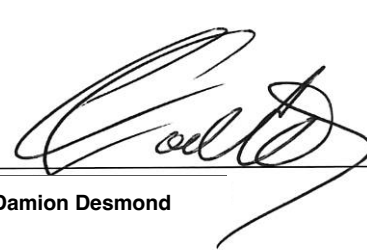
signature of director/sole director & sole
secretary (cross out if inapplicable)

Signed Sealed & Delivered by
Damion Desmond
in the presence of



signature of witness

name of witness



Damion Desmond